through 31, nine of the ten sessions, but they didn't offer the tenth, and I'm now offering the tenth, which is Defendant's Exhibit 61. I gave them a copy of it this morning, and that relates to the session held on Tuesday, November 14, at the year 2000, from 8:00 p.m., to 9:20 p.m. in the evening.

THE COURT: Without objection, let it be so marked and received in evidence as Defendant's Bush, Defendant's 61.

(DEFENDANT'S EXHIBIT 61 RECEIVED IN EVIDENCE.)

MR. TERRELL: As this time, Governor Bush calls Thomas Spencer as a witness.

* * * * *

Whereupon,

THOMAS SPENCER

was called to be testify and, halving been first duly sworn, was examined and testified as follows:

THE COURT: Did you get that transcript, yet, or are you using it?

MR. TERRELL: I'm sorry, Your Honor, I didn't hear you.

THE COURT: Go ahead so we may duly mark it.

MR. TERRELL: We actually premarked it.

DIRECT EXAMINATION

BY MR. TERRELL:

Q Please state your name, sir.

A My name is Thomas Spencer.

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Q Mr. Spencer, where do you live?
A Miami, Florida.
Q All right. How long have you lived there?
A Since I was 15 years old.
Q That leads to the next question, how old are you?
A Forty years.
Q So you've lived there 40 years?
A Forty.
Q What is your occupation, Mr. Spencer?
A I'm a lawyer.
Q What kind of lawyer are you?
A I'm a very good lawyer. But I am a business, and a commercial litigation lawyer. I handle complex litigation and election type law.
Q You said you handle some election law matters?
A Yes, I do.
Q Do you feel that you're proficient in election law matters?
A Yes, I do.
Q Before we come back to election matters, which is what this trial is about, I want to make sure that we get straight with everybody about a couple of things.

Are you registered to one party or the other, or a third party?
A Yes, I am.

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Q Which party is that?
A Republican.
Q How long have you been a Republican, Mr. Spencer?
A Since about 1978.
Q Twenty-two-plus years?
A Yes.
Q And some people are -- let me ask this: Are you active in Republican affairs?
A Yes.
Q Were you active in this past election?
A Yes.
Q On whose behalf?
A On behalf of Governor Bush.
Q All right, sir. In connection with the matters at the Miami-Dade Canvassing Board, and I want to focus on that, could you tell us just generally what role you had, if any, in that regard?
A I had a very extensive role.
Q Could you give me the time frame in which you were down in Miami-Dade County headquarters, if that's where you were.
A I began my activities in connection with this series of events on the early morning of November the 8th, 2000.
Q The election was on November 7th?
A That's correct.
Q So shortly after the night of the election, you were on

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the scene?

A Yes.

Q And where were you?

A I was in -- on the 19th floor, the Department of Elections, Miami-Dade County.

Q And what did you do just generally that day?

A On that day, I participated on behalf of the Republican Party of Miami-Dade County to observe the recount, the machine recount of the November 7th results.

Q All right. Was that the second machine count?

A That is correct.

Q Was it of all or just part of the votes in Miami-Dade County?

A It was all of them.

Q For the second time?

A That's correct.

Q Were there other times that you were on the scene at the Miami-Dade County Election Board, as time went along, during the month of November?

A Sir, from the early morning of November the 8th, until November the 29th, I was, more or less, continuously involved in the process of the various recounts, machine recounts, and other activities, before the Canvassing Board.

Q Did you observe the second machine count, that is, the recount?

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A Yes, I did.

Q Did you observe all of the board's hearings that occurred of the Canvassing Board that occurred after November 8th, and through, November 22?

A Yes.

Q Prior to that experience, and I'm talking about the experience of this election, had you had any other experience in terms of viewing up close, as an observer, elections?

A Yes, sir.

Q Would you tell Judge Sauls, generally, what that experience has been?

A Well, I'm also a political science major, so, from the time I was a college student, through my activities as a young lawyer, through the present day, I've always been involved in election law, or campaigns, in one way or the other, and also observing counts and recounts.

Q In your experience, in Miami-Dade County, did you -- do you have the capacity to advise us on, generally speaking, which precincts tend to vote Democrat, and which precincts tend to vote Republican?

A Yes, as a general rule, I could.

Q Would you please advise Judge Sauls of that, and, in particular, in reference to the presidential election of this year, in Miami-Dade-County?

A Sure. Well, generally speaking, the precincts in

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Miami-Dade County are laid out in a numerical method, and so that the earlier -- the lower numbers are along the coastline, the east coast, and then sort of work their way down, and that is south and west. And that is that the most recent precincts which are opened up, are the higher numbers. So that the areas which are the lower numbers are sort of on the east coast, and in the upper northern section of Miami-Dade County.

So that the Miami Beach areas, the areas in what we will call Aventura, the Liberty City areas, tend to be, generally speaking, the lower numbers.

And those numbers which are in Little Havana, which are to the west of Miami-Dade County, and to the south, the higher numbers, tend to be more Republican.

For example, in the Coral Gables area, there are more Republican voters. In the western part of Dade County, there are more Republican voters who tend to be Hispanic.

Q All right. We'll come back to this subject as we talk about what the Miami-Dade County Board did, in fact, in November, based on your personal observation. Let me first turn your attention to November 14, sir.

A All right.

Q And, in particular, I would like to draw your attention to Defendant's Exhibit 61, which Judge Sauls has just admitted.

MR. TERRELL: May I approach the witness?

THE COURT: You may, sir. Do you need the exhibit?

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BY MR. TERRELL:

Q First, sir, let me ask you if, in fact, there was any kind of manual recount of any precincts on or about November 14 in Miami-Dade?

A Yes, sir.

Q How many precincts?

A There were three precincts.

Q Were those manual hand counts?

A Yes, they were manual hand counts.

Q All right, sir. And which three precincts are we talking about? Are we talking about precincts that are typically Democrat in their voting pattern, or Republican, typically, in the voting pattern?

A These were precincts which were selected by the Democratic Party for a test, manual recount, and they were highly Democratic precincts. As a matter of fact, they were the highest Democratic precincts in Dade County.

Q How many precincts are there, roughly, in Dade County?

A About 614.

Q So we have 614 precincts, and Vice President Gore's campaign chose the three that voted most heavily for him to test to see if there was an error?

A Yes. I believe the percentage was in excess of 90 percent.

Q And how many, roughly, how many voters are comprised in

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those three precincts?

A My recollection, it was roughly about 5,000 votes.

Q Total or each precinct?

A Total.

Q And after that manual count was -- well, first of all, did you observe the manual count?

A Yes, I did.

Q All right. At the end of the day, for whatever time it took, at the end of the time the manual recount was ongoing, how many votes switched to Vice President Gore in these heavily Democratic precincts?

A I believe at the end of the day my recollection is there were six votes.

Q And do you know whether those precincts, according to the first machine count, and the machine recount, had gone for Vice President Gore, about a ten-to-one margin?

A Yes, they did.

Q Sir, I'd like to, now, if I could, turn your attention to the report of the results by the Canvassing Board on November 14th.

First, let me ask you, did you, in fact, observe on November 14, the activities before the Canvassing Board in which it discussed what to do in light of the six-vote gain by Vice President Gore as a result of looking at these three Democrat precincts?

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A Yes, sir.

Q And what, based only on your own observation, what did the Canvassing Board vote to do?

MR. GREENBURG: Your Honor, I'm going to object. The record speaks for itself.

THE COURT: Overruled.

A The vote -- the Canvassing Board decided by a majority vote not to go forward with a full countywide manual recount.

Q All right. We're going to talk about that in Defendant's Exhibits 61, that's what I placed in front of you.

But, first, I need to understand, the matter that I understand Judge Sauls would perhaps appreciate understanding, the composition of the Miami-Dade County Canvassing Board, were there three members?

A Yes, there were three members.

Q Could you name each of them?

A Yes. The board consisted of Supervisor David Leahy, Judge King, County Court Judge, and Judge Myriam Lehr, County Court Judge.

Q Was Supervisor Leahy registered into any political party?

MR. GREENBURG: Your Honor, I'm going to object. There's no way this witness, as much as I respect him, would know that fact.

THE COURT: I'll sustain his objection, and let you lay

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a predicate, if you know.

MR. TERRELL: Yes, sir.

BY MR. TERRELL:

Q Have you determined whether each of these supervisors are registered, that is, whether they're registered to a political party or not?

A Yes.

Q How did you do that?

A It was read on the record.

Q All right. And you're talking about the record of the proceedings that you observed down in Dade County?

A That's right.

Q What party affiliation, if any, did Supervisor Leahy have at the time of the Miami-Dade proceedings that we're talking about in this lawsuit?

A David is an independent.

Q All right. How about -- is it Judge Lehr?

A Judge Lehr.

Q How about Judge Lehr?

A She is an independent.

Q You mentioned a County Judge, Judge King what registration or affiliation, if any, did Judge King have at the time of the events that we're talking about?

A He's a Democrat.

Q Now, let's turn, if we could -- first, let me ask you,

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on this two-to-one vote, that was two-to-one, I believe you said, against doing a full manual recount of all the ballots in Dade County, based upon findings of six extra votes for Vice President Gore in heavy Democrat precincts, correct?

A That's correct.

Q Now, focus on that, again. Who cast the two votes on the board, against doing a full manual recount?

A Supervisor Leahy, and Judge Myriam Lehr.

Q And who cast the vote against that, and instead wanted to go ahead with the full manual recount of more than 600 ballots in Dade County?

A County Court Judge King.

Q The Democrat?

A Yes.

Q Now, if you would, let's turn to Exhibit 61, and I hope a copy is given to you, if not, I have an extra copy for the Court.

THE COURT: May I hand it up to Your Honor?

Q Mr. Spencer, will you look on page 350, of this transcript?

A Yes, sir, I have it.

THE COURT: What page, counsel?

MR. TERRELL: 350, Your Honor. It may take you a moment. We'll wait.

THE COURT: Go ahead, by all means.

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BY MR. TERRELL:

Q Sir, do you see page 350, line 22 of this transcript?

A Yes, sir.

Q Would you start reading, first, at line 22, where it says Judge King is the speaker, through the end of his speech on 351 of line five?

A Certainly. This is Judge King speaking: "Thank you very much, Mr. Greenburg. At this time, I will exercise, again, my priority as chairman, and I would ask that Mr. David Leahy cast a vote with respect to the limited 10,750 vote recount, or any precinct limitation that would be reasonably found by the board to be applicable in this case."

Q Now, stop there and let's skip down a little bit, because there's a colloquy between Mr. Martinez, the Republican representative, and Judge King, and if you'll go down to page 351 line 16 and pick up there, and I'll stop you when necessary. Read slowly.

A Sure. This is Mr. Leahy speaking: "I don't believe that the changes that I saw in votes, when you look at the number of initial votes that were counted, when you look at the disproportionate number of votes that the Vice President got in those three precincts after the -- in the recount, compared to the number of votes which Governor Bush got after the initial count and after the recount, warrants us to go any further.

"I believe that what we saw is that, truly, there was

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no error from the tabulation system. There are six instances where the tabulation equipment, due to improperly punched ballots, did not record the vote as we saw it when we hand counted. I just do not -- let me state it another way, I have a lot of experience with this system. I've been here since '74 in the election process. I've been in this system since 78.

"I've been involved in numerous recounts and several hand counts. Based on that experience, it would be my belief, if you counted every ballot by hand in the county, you would get an equal proportionate share of votes for both candidates. I do not believe anything I've seen tonight, warrants us to proceed with an examination of the undercounted votes or calls for a manual recount. So my vote is, no."

Judge King now speaks: "Thank you, Mr. Leahy. Judge Lehr?" And Judge Lehr speaks: "I'm going to concur with Mr. Leahy, my vote is, no, for a recount." And then Judge King speaks. "At this time, the chairman votes, yes."

Q All right, sir. If you will skip to the bottom of page 353, and start with line 23 where it says, "At this time."

A Yes, this is still Judge King speaking: "At this time, a majority of the Canvassing Board has decided there will be no further hand recounts in the presidential election of November 2000."

Q And this occurred on what date?

A On the 14th of November, in the year 2000.

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Q Okay. I'd like to now turn to November 17th. On November 17, sir, did the Dade County Canvassing Board, County Judge King, Judge Lehr, and Mr. Leahy, again take up the question of whether to conduct a full manual recount?

A Yes, sir.

Q Who brought that idea up?

A My recollection is that on the 15th of November, the Democratic Party represented by Steve Zack, Joe Geller, and Kendall Coffey, filed a motion for reconsideration before the Canvassing Board, and that motion was then set down for hearing on November the 17th.

Q All right, sir. I think -- did November 17 on this issue kind of have two parts, or what? Did two different things happen with respect to this issue on November 17th?

Well, first, let me start this way: Let me ask you, at this November 17th hearing, was any new evidence brought forward, or offered by the Democratic Party or anybody else, on this same question that had been considered on November 14, as to whether the Canvassing Board should go from a three-precinct manual recount to a recount of more than 600 other precincts, as well?

A No, sir.

Q Was there just legal argument?

A Yes, sir, and policy argument.

Q Policy argument? All right. What was the decision of the Canvassing Board regarding going from a three-precinct manual

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recount, to fully recounting by hand all 600-plus precincts in Miami-Dade County?

A My recollection is, this time there was also a majority vote, but this time it was to conduct the manual recount.

Q Well, sir, do you recall that -- let me show you, first, Plaintiff's Exhibit 23. Sorry, Your Honor.

MR. TERRELL: May I approach the witness, Your Honor?

THE COURT: You may.

MR. TERRELL: And on the way, may I give you a copy of this? It's already in evidence.

BY MR. TERRELL:

Q Sir, would you take a look, and does this -- do you believe this bears you out that they did, in fact, decide on that day, contrary to their prior decision on November 14, that they would go forward?

A That is correct.

Q And was it with a full manual recount, or was it just to count some of the remaining precincts?

A It was for a full manual recount.

Q All right. And --

A Of the entire Dade County area.

Q And you said the vote was two-to-one?

A Yes.

Q Who was the one person who voted against doing this?

A David Leahy.

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Q And was he the professional Supervisor of Elections for that county at the time he voted not to do this?

A Yes, sir.

Q Was there another matter that came up -- and let me be specific. At this time, did the Democrat observers, and the Democratic Party and Vice President Al Gore's team, argue for a partial recount?

A Yes, sir.

Q When you do a recount of the whole county, do you start with the lower numbers, or do you start at the highest precinct number and work backwards?

A No. The system in Miami-Dade County is to start with the lower numbers and increase in arithmetic numbers.

Q And if you start the recount with the lower numbers, as it's typically done, are you counting heavy Democratic precincts, or are you counting heavy Republican precincts?

A You're counting heavy Democratic precincts, because the system, as I described before, is moving from the coastline, from the east, west, and south.

And the traditional highly Democratic areas are in the north and to the east.

Q And what were the Democrats proposing on November 17, with respect to a partial manual recount?

A Well, they proposed a number of things. But one of them was to only count the, approximately, 10,750 so-called

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undervotes.

Q And was a vote taken by the supervisory board on that idea on November 17th?

A Yes.

Q What was the vote?

A The vote was to conduct a full countywide manual recount, and not just to count the undervotes.

Q What was the number of the vote? Was it two-to-one? Three-to-nothing?

A I recall that in this instance, there was a two-to-one, I think it was a two-to-one -- I'm sorry, it was a three-to-zero vote on the full manual recount.

Q Well, let me show you now, this exhibit, a portion of the exhibit that I brought to your attention, Plaintiff's Exhibit 23. Would you take a moment and look at page 96?

A Yes.

Q And do you see, on page 96, at line 16, that Chairman King of the Canvassing Board is speaking?

A Yes.

Q Would you read what Chairman King says on this matter through line three on page 97?

A Yes, Chairman King: "All right. Thank you very much. I've read the statute, I've listened to Mr. Greenburg and Judge Lehr. I wish for your input, if you wish. It says, Under Section (5)(A),(B), and (C), Florida Statutes, in this case for

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the report, 102.166, Section (5), Subsection (C), that the option available to this Canvassing Board, assuming that the Canvassing Board were to consider voting, yes, on this issue, a manual recount of all ballots, I think it's pretty clear it says, shall, it does not say, may, it does" -- and here I believe there's a typographical error on the part of the court reporter -- "it does say some part thereof," but my recollection, is, "it does not say some part thereof."

Q Let me understand, let me be sure we have competent evidence. Were you there to hear this speech by Judge King?

A Yes, I was.

Q And was Judge King making this statement with respect to the Democrat's attempt to get only a partial manual recount; that is, of 10,750 so-called undervotes?

A That is correct.

Q And Judge King, the Democrat, voted against that?

A Yes.

Q Was he, by the words that he used, he mentioned a Florida Statute that says that in a manual recount, all the votes will be counted?

A Yes, sir, and I've just cited to it.

Q All right. Now, you correct me if I'm wrong, and I could well be, later in the day on November 17th -- well, strike that. Let me start over.

On November 17th, did the manual recount start, or did

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something have to occur before that?

A No, it did not start. Because it was such an extensive manual recount, preparations had to be underway -- taken, in order to conduct the countywide manual recount.

And so various plans were prepared to do that. And, also, preparation done in order to identify the, approximately, 10,750 undervotes.

Q Did you observe this process, yourself?

A Yes, I did.

Q I want to ask you a couple of things, based on your observations.

What did the Canvassing Board do with the 625,000 ballots in order to try to find undervotes?

A Well, what occurred was that Supervisor Leahy announced that the Department of Elections had a software program which could go through all of the ballots for Dade County and identify those which were recorded by the sorting machines as so-called undervotes, and that the -- his staff would then mechanically, and physically separate the undervotes from all the other votes.

And that process was to take place, it was announced, on the 19th of November.

Q Do you know, of your own observation, of whether this software program to cull out undervotes through another machine count was a new process that Mr. Leahy had been working on, or was it one that had been used in the past?

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A To the best of my knowledge, it was a program that had not been used often in the past, if it had been used at all. And, as a result, some training had to be undertaken by the staff to utilize it.

Q Well, we'll come back to that in a moment. And I believe you said that -- were the ballots run through the machine yet a third time, I'm talking about all 625,000 ballots in Dade County?

A Yes, on November 19th, I appeared in the tabulation room of the 19th floor in the Department of Elections, and the process was begun to run all of the ballots through the machines, through the sorters, and identify, or attempt to identify all of the so-called undervotes.

Q Now, on November 20 and 21, were you at the scene observing?

A Yes.

Q On November 22, you were on the scene observing?

A Yes.

Q On November 22, one day after the Florida Supreme Court made a decision heard around the nation, on the next day, on November 22, what did the Canvassing Board of Dade County determine to do with respect to the manual recount that had been ongoing on November 20, and 21?

A The board decided that due to the time limitation, indicated by and ordered by the Supreme Court of Florida in its

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decision, that there was, in its view, insufficient time to do a competent and proper manual recount.

Q Let me ask you this: About what percent of the precincts had been completed in this manual recount at the time the board voted to stop?

A About -- my recollection it was about 20 percent, or 15 to 20 percent of the precincts.

Q And was that starting at the bottom with lower number precincts, working up?

A Oh, yes.

Q So that first 20 percent of precincts, based on your experience in Miami-Dade County, was that a count by hand of heavy Republican precincts, or heavy Democratic precincts?

A No, they predominantly were heavy Democratic precincts.

Q Are those the 388 votes that Al Gore's lawyers want to get into evidencing before Judge Sauls?

A Well, I'm not precisely sure about that, but the 388 votes that have been talked about are, in fact, the votes which were counted, or observed from the predominantly Democratic precincts in Miami-Dade County as a result of that process.

Q And, in fact, do we even know, they were never even certified as votes, were they?

A No.

Q By anybody?

A No.

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Q And in connection with the vote not to go forward with the manual recount, was there -- because of time problems, was there a Democrat effort before the board to go ahead and, well, let's just count what you think you found in these undervotes, in the 20- percent precincts, which were heavily Democrat?

A Yes, sir.

Q And did the board -- I take it the board didn't do that?

A It did not.

Q All right. Were there opinions expressed, or statements made, is a better question, statements made by the board members, as to why it is they were not going to go ahead and submit what they had found in just the Democrat precincts?

A Yes. My recollection is that since the manual observation and recount of the heavily Democratic areas yielded these preliminary results, it would not be a competent or even a fair indication of what the results were for Miami-Dade County, since the counts had predominantly been in the very, very heavy Democratic areas, and the very, very heavy comparable Republican areas had not yet been counted, or even observed.

Q If, in fact, the 20 percent had gone forward, would that have been counting Democrat votes, but not the Cuban and Hispanic votes in the typically Republican precincts that might be found by the same process?

A Well, it would have included those kinds of votes, but

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it also would not have included my vote.

Q You may have been in one of these precincts that has a higher number?

A Yes. I live in a predominantly Republican area.

Q That is, of course, if you manage to perform the dimple chad maneuver, correct?

A I did, and my precinct is 626, in the higher numbers.

Q You don't know whether you had a dimpled chad or not, do you?

A No, I don't.

Q Did you try to punch it all the way through?

A No. The procedure is very simple and very clear, and I punched through clearly, and as the instructions said, I pulled the ballot up and looked to see whether there were any hanging or swinging chads, and turned it in.

Q Let me turn briefly to some ballot handling issues. But before I do, I want Judge Sauls to know something about you and Mr. Leahy. Are you and Mr. Leahy friends?

A I would say so, yes.

Q Do you respect Mr. Leahy?

A Very much so.

Q Do you respect the people at the Miami-Dade County Board who worked there and tried so hard during the month of November?

A Very much so. In fact, I think if they could be given

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a Dade County medal of honor, they should be.

Q All right.

MR. GREENBURG: Your Honor, feel free to send us all home.

THE COURT: Overruled.

BY MR. TERRELL:

Q Let me be quick about this. You had previously testified that all of the ballots, all 625,000 Miami-Dade ballots had been through the machines three times?

A Yes, sir.

Q Did you observe the ballots going through the machine the third time, when Mr. Leahy, your friend, was trying to find what he thought might be undervotes?

A Yes.

Q What did you tell the Court what you observed?

A Well, I believe that you're speaking of the run-through, through the machines on the 19th of November.

Q The 20th -- 19th, yes.

A This was Sunday, and we appeared about ten o'clock, and stayed through the process. And what occurred is that the ballots had to be put through the sorters. And each team, Your Honor, in the tabulation room, which is, I would say, roughly the size of this courtroom, and there are about a dozen, to 13 different stations, and each station has a computer, and each computer is affixed to a sorter.

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And the process is a manual process whereby the teams put the cards into the sorter, and the computer operates it. And when an undervote is identified, then the machine stops. And the operator then must take the card out physically, and put it into what was then an envelope that was marked by precinct. And this process would continue until the, approximately, 10,750 so-called undervotes were then identified.

So this process started at ten o'clock. And the -- since the folks were new to the program, there was a lot of training, on-the-job training, so to speak, with respect to the machine operation during the course of the entire day.

Some operators were not very familiar with the operation of the machine, and, therefore, the process started out very slowly.

Q And were there machine problems in the process?

A Yes. There were a number of machine problems in the process in this sense, and I helped several of them: First, the operators would have to stake a stack of voting cards, and then fan them physically in order to put them properly into the sorter. And this was necessary in order to get the proper alignment so that the machine could start.

And then very frequently the machine would jam, and the card would be taken out, the lead card would be taken out and physically manipulated along the top side and along the side, shorter side of the voting card in order for it to align properly

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back into the machine.

So there was a lot of stops and starts. And I know at one point I know David got -- stopped the process and retrained several of the operators.

Q When you're saying, "fanning," you mean like this (indicating) with these ballot carts?

A No, I mean fanning, like you would do with a deck of cards. They would take the stack of ballots and then fan them for whatever reason, and put them in the sorter, and it was my opinion it was necessary to properly align them.

Q All right, sir. Let me ask you this: Not to belittle anybody, and not to criticize anyone under these stressful extraordinary circumstances, did you observe any dropping of precinct trays?

A Yes. On the 19th, an entire tray of ballots from Precinct 214, is my recollection, fell and splashed all over the floor, and was picked up, and then put back in the tray in order.

MR. TERRELL: Your Honor, I pass the witness.

THE COURT: You may inquire. Wait just a minute.

MR. KLOK: Shortly, Your Honor.

CROSS EXAMINATION

BY MR. KLOK:

Q Mr. Spencer, just a couple questions. You testified, did you not, that there was no evidence whatsoever of a voter tabulation system problem after the one-percent manual test was

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done; is that correct?

A That was a statement which Supervisor Leahy made, yes.

Q Did either one the other Canvassing Commission members say anything contradictory to that?

A Not to my recollection, no.

Q And with respect to the six ballots out of the 5,000 that were kicked out of 90-percent Democratic selected precincts --

A Excuse me, I made an error. I do recall now that Judge King said that he believed that by virtue of the net gain of six votes, there was, to him, an error. And Judge Lehr disagreed, and that's why there was a two-to-one.

Q Very good. And the six votes that were kicked out, out of 5,000 votes that were looked at in 90-percent predominantly Democratic precincts, in each of the case of the six there was voter error?

A That's right, the voter didn't carry out the instructions by punching through and examining carefully the ballot to make sure there were no hanging chads so the machine could read it.

CROSS EXAMINATION

BY MR. KITCHEN:

Q Good afternoon, Mr. Spencer. I'm Deeno Kitchen. I'm a lawyer here in Tallahassee. I'm a trial lawyer, and I'm a Democrat. I understand that you're a lawyer, and you do

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commercial work. You're a Republican; is that correct?

A Yes, sir.

Q Obviously, from what you see me doing now, I have a dog in this fight, and it would be fair to say you do, too?

A Well, sir, I had a dog in the fight before I walked in the courtroom, but while I'm here, I'm here to assist the Court.

Q But you still have your feelings, and your beliefs?

A Absolutely.

Q Now, let's take a look at Mr. Leahy. He's a supervisor in Miami-Dade; is that correct?

A Yes.

Q Honest man?

A Very honest man.

Q Fair man?

A Fair man.

Q Competent man?

A Very competent.

Q Do you think that Mr. Leahy is capable of supervising the segregation or separation of undervotes from the rest of the ballots? Do you think he's capable of that?

A Well, I think he is, but that wasn't the process, the machine did it.

Q But whether it did it through the use of his machine, through the use of the clerks, through the use of other personnel, is that office capable of doing it?

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A In my view, they were capable of doing it, yes.

Q Now, the fact is that at some point, at some point, there were some hand counted votes of some of the undervotes; is that correct?

A Yes, sir.

Q Now, there were approximately, and I say approximately, 10,750 undervotes, as we've been calling them; is that correct?

A Yes, sir.

Q And you said about 15 percent of some portion there was actually hand counted?

A Yes, sir.

Q Did Mr. Leahy see that the hand count was fair?

A Well, that would be a judgment that I would disagree with.

Q So you thought Mr. Leahy was not fair in the hand count?

A Well, I would have to answer it this way: I would say, from my perspective, no. And let me explain this. I would not question in any way, shape, or form, the integrity, or the motives, or independence of Mr. Leahy, but I -- and I think the world of him.

But I think that the decisions that were being made, as I observed them -- and I was as close to him as this computer screen is, were, in my view, not correct.

Q In judging his actions, Mr. Spencer, wouldn't it be

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fair to say that having a dog in the fight, could certainly affect how you observe things?

A I would say that, absolutely, the fact that what I observed, in my view, was not correct, not fair, not in accordance with what I perceived to be the law or the purpose of the voter law, would -- and would absolutely lead me to the conclusion that it was not fair --

Q Okay, sir.

A -- or right.

Q Mr. Spencer, I'm really not directing my questions to your views of the law, but what you observed, and how you saw it happening is what I'm talking about.

The fact is that, approximately, 10,750 of these undervotes were hand counted, correct?

A Yes, sir.

Q And 436 additional votes were counted out of that hand count?

A That was the report and conclusion of a majority of the board.

Q Did you think the people hand counting were capable of fairly and honestly giving their best judgment as to whether or not those 436 votes should be added to the tally?

A Well, sir, my view was that the system that they were using to make those determinations was not right, was not fair, and was not in accordance with what I believe the result should

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be.

Q Whatever the system was selected by those charged with the duty of making that decision, were they attempting, in your view, to fairly and honestly go through that decisionmaking process?

A I think that they were using a sense of fairness that they believed was appropriate, just as they did when they decided to stop the manual recount. I think that they had the best of motives involved in both circumstances, even though I disagreed with the decision that they made with respect to their analysis of the so-called undervotes.

Q Fine. As an American citizen, we all agree you've got the right to differ.

A Thank you sir.

Q But the fact is, they came up with an additional 436 additional votes?

A I don't believe.

Q 436 votes were added to the total count from the 10,750 recount, not all for Gore, or all for Bush, but a total of 436?

A I just don't have that number.

Q Approximately?

A I just don't have that number in mind.

Q More than 100 were added, weren't there?

A That's my understanding and recollection.

Q You recollect more than 400 were added, don't you?

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A I don't even recall what the number was, but I know there was more than 300.

Q I'm in the ballpark?

A You are.

Q Now, some of those were added for Vice President Gore, some of them were added for Governor Bush?

A That's correct.

Q And the best you could tell, whether you disagreed with the system and what was being done with the law, whatever was being done was fairly being done as best you could tell?

A I don't think it was fairly being done, no, I don't. I disagree with that.

Q Was it honestly being done?

MR. TERRELL: Your Honor, excuse me --

THE COURT: Asked and answered.

MR. TERRELL: Yes. Excuse me. Thank you, Your Honor.

BY MR. KITCHEN:

Q Did you ever observe anything going on in this recount that you thought was dishonest?

MR. TERRELL: Excuse me, Your Honor, it's the same question. I object.

MR. KITCHEN: I simply --

THE COURT: I believe he's answered that about four times.

MR. KITCHEN: May I ask you a question?

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THE COURT: Proceed. Rephrase it, if you need to.

BY MR. KITCHEN:

Q What I want to know, Mr. Spencer, and I don't mean to belabor it, where you disagreed with how something was being done, you're not suggesting that there was any dishonesty going on?

A No, not to the best of my knowledge.

Q Now, as you understand it, but for time constraints, placed by the Supreme Court at that time, all of the undervotes would be have been hand recounted, wouldn't they?

A My understanding is that, but for the deadline, all of the manual -- all of the votes would have been manually examined and counted by the Canvassing Board.

Q And even on the day the Canvassing Board decided not to continue the manual recount because of time, that very morning they had voted three-to-nothing, to do the undervote, count the undervote, didn't they?

A Yes.

Q The entire undervote?

A Yes.

Q Now, are we correct when we say these, approximately, 9,000 undervotes that were not the subject of the manual recount, have never been observed for counting purposes by human eyes?

A To the best of my knowledge, that's true.

Q In fact, you have absolutely no evidence to the contrary that anyone ever did attempt to recount?

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A That's correct.
Q Now, when we get to the question of -- you told us that, first, there was a vote to do the sample hand recount of the ballots?
A Right.
Q And then that was stopped, or voted to stop that, correct?
A That's correct.
Q Then they voted to continue the hand recount, am I correct?
A That is correct.
Q And when they voted to recontinue, they, at least, had before them for their consideration, an affidavit of a statistician, Professor Carroll from Johns Hopkins, they had that before them for their consideration, didn't they?
A I recall there was a lot before them for their consideration.
Q So you're not suggesting to Judge Sauls that just out of nowhere, they decided all of a sudden: By golly, we're going to start back with no reason whatsoever?
A Absolutely not. I think that every decision that they made was very carefully considered.
Q Now, you gave us your insights, Mr. Spencer, as a longtime Republican in Dade County, of how you thought the hand count would have gone, if it had continued from these precincts,

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to those precincts and about the county, correct?

A Well, what I indicated, just to be correct, that the count, the manual recount, so far as it went, was virtually only in the heavily Democratic areas, and really didn't take into consideration the heavily Republican areas, or even those which were evenly mixed.

Q But we will never know what that recount would have shown, because it hasn't been done, correct?

A That's correct. The entire manual recount was never completed properly.

Q And can a commercial lawyer and a trial lawyer agree that the only way we'll know for sure what these 9,000 undervotes that have never been viewed for counting purposes by human beings, the only way we'll know what they actually say is if someone counts them?

A Well, that's where we disagree. I contend that these votes have been counted. I think that they've been fairly recounted, and that these votes, by virtue of the results of the tabulation equipment, there was no error, and that the results which have been certified by the Canvassing Board are the fair, proper, and legal results of the election in Miami-Dade County on November the 7th.

Q Okay. Would you agree with me that they have not been hand counted?

A I would say that --

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MR. TERRELL: Excuse me, sir. Asked and answered, Your Honor, repetitious. He had already said that they had not been counted by hand.

THE COURT: Rephrase the question. I believe he testified that they haven't been recounted.

MR. KITCHEN: Let me shorten this very much.

BY MR. KITCHEN:

Q You told us why you think these 9,000 votes should be manually counted. Would you agree that if Mr. John Ahmann, I believe his name is pronounced, the manufacturer and inventor of the voting apparatus that was used, says that in a close vote, in a close vote, a hand recount is important, would you defer to him on the question of whether we could better know what those votes said if we hand recounted them?

A No, sir, I wouldn't, because the results of an election for the office of President of the United States of America needs to be fair and even handed.

And to simply count votes from predominantly Democratic precincts, or even to use a system of hand observation just in Dade County, or just in Dade, Broward, and Palm Beach County, and not do the same throughout the rest of the State of Florida, is going to give a skewed result and an unfair result, and is not the kind of result that our system is set up for. So I respectfully disagree.

Q And that's your opinion, it's your legal opinion, it's

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your political opinion?

MR. TERRELL: Object to the sidebar from counsel.

MR. KITCHEN: I'm asking him if that's what it is.

THE COURT: Overruled.

A It is all of those.

MR. KITCHEN: Thank you very much.

MR. TERRELL: No Redirect, Your Honor.

THE COURT: Well, if you don't mind, let me ask one question. You made reference to difficulties down there in the manner in which they were implementing, I suppose, the hand count when it started, is that correct?

THE WITNESS: Yes, sir.

THE COURT: Well, were you able to tell, or do you have any -- well, just let me leave it at that, were you able to tell what kind of system that the -- or standards that the board was using when they were -- when they began counting and counted the approximately 15 or 20 percent of the first numbered precincts?

THE WITNESS: Yes, sir.

THE COURT: What was it?

THE WITNESS: And I should explain, I was behind the Canvassing Board watching them, as about as close I am to the computer screen here. And essentially what happened was that there were different variations of decisions that I observed.

For example, my observation of Judge King was if there

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was simply a dimple or a pregnant chad of any kind, he would determine that that was a vote, regardless of whether or not there were indentations or clear punches on the rest of the card.

On the other hand, I observed that Supervisor Leahy, on the full manual recount, used a different approach. I observed that he would take the ballot and hold it up to the light, like I'm indicating here (indicating) and look to see whether there was some separation on the top of the ballot, light separation of some type. And if there were, then -- and there were some other indication on the ballot, he would determine that that was a vote.

Judge Lehr used a different approach, and she would take the ballot and hold it to the front, and also turn it over on the back, to see whether or not there was some paper separation.

This was different than the process they used on the first go-round, on the three precincts. And I saw all kinds of different variations of these indications.

And I reached the conclusion that there was no standard that was being used, but that there were different approaches being used by each of the three of them.

THE COURT: Well, even if that was the case, when they decided after they reviewed it to place one in the stack that would count as a vote, were they unanimous when they did

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that?

THE WITNESS: No, Your Honor, they -- in some instances, where there were clear punches, they were unanimous. And we did have several of those.

But most of the time, it was a two-to-one vote. I saw a majority vote. And I would say that the vast majority of the judgments I saw, they were by majority vote, not by unanimous decision.

THE COURT: The same majority, or did the majority vary?

THE WITNESS: The majority varied. It was, in certain circumstances, Judge King would use sort of a dimple test, and one of the other, Leahy, or Lehr would we go along with him. And in another case, I noted that Judge Lehr would say there was no indication on the ballot of voter's intent to actually vote, and she didn't think there was that kind of indication.

THE COURT: Well, the majority change, did the one ever change?

THE WITNESS: No, the one consistency that I would observe and that I recall was that Judge King seemed to see a vote in every dimple.

THE COURT: I'm talking about if there were two-to-one, if we're dealing with the majority, I'm talking about the one, did the one always stay the same, or did the one move

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around the table, the three of them?

THE WITNESS: No, the one moved around.

THE COURT: Okay. So if you have a system like you described, even if you have a count, suppose -- would it be the case, if you put three different people in, they might get a different count from three people that you observed.

THE WITNESS: Absolutely. And I must tell you, Your Honor, that the judgments that I observed on the second go-round were completely different than the system that was used on the three precincts, in this sense: On the first go-round, Supervisor Leahy did not hold the ballots up to the side.

What he did was to look at the ballot, and he would look to see whether or not there were clear punches on the rest of the races, and if there was a hanging chad by two points, he would determine that there was a vote, because the voter had clearly punched on the rest of the ballot. And that was his decision.

Judge King, as I said, was fairly consistent. If there was a dimple, regardless of what the rest of the vote was, he would determine that there might -- or would be a vote, and he would vote for that. And Judge Lehr, I notice that she would make a decision for a vote, only if there was an actual clear tearing away of the paper on the ballot, on the chad.

And so I noticed and reported a completely different

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set of criteria, if I could use that, between the three precincts in the last manual recount.

THE COURT: All right, sir, thank you. All right. Either of you may inquire as to any manner I may have inquired about.

MR. TERRELL: I have no questions, Your Honor.

MR. KITCHEN: No questions, Your Honor.

THE COURT: May the witness stand down?

MR. TERRELL: Yes, sir.

THE COURT: Excused without objection.

MR. TERRELL: Your Honor, at this time, Governor Bush and Thomas Cheney call Thomas Spargo, S-P-A-R-G-O.

* * * * *

Whereupon,

THOMAS SPARGO

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. TERRELL:

Q Good afternoon, sir?

A Good afternoon.

Q Please state your name for the record.

A Thomas J. Spargo.

Q Where do you live?

A I live in Albany County, New York.

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Q You're not a Floridian?
A I am not.
Q Are you a Republican?
A I am a Republican.
Q For how long have you been a Republican?
A Probably since I registered to vote when I was 18.
Q Everybody has got to do it, how old are you now?
A Fifty-seven.
Q Are you actively engaged in activities on behalf of the Republican party?
A I'm a lawyer that practices extensively in New York State doing election law work and a predominant part of my clients would be Republicans.
Q Do you have any clients who are Democrats?
A I just finished a recount in Albany County where I represented the Democratic candidate, Paul Kline (phonetic) in a fairly close election.
Q What was this Democrat running for?
A District attorney, so the Republican candidate was represented by other lawyers.
Q Do you have any expertise as a lawyer in election contest matters?
A I've been doing election law cases for over 25 years, to include recount and litigation on the close election cases, and usually do about at least two or three a year.

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Q Sir, let's turn our attention to what we're here about, and that's Miami-Dade County. Did you have any involvement on behalf of Governor Bush and Secretary Cheney with respect to Miami-Dade County after November 7th?

A Yes. I came down from New York on Saturday, November 18th, and arrived in Miami, and then began to participate in the process that was described earlier, on Sunday the 19th, which was the sorting of the undercount ballots in the tabulation room in the county office building.

Q I want to come back to -- well, before I leave that topic, generally, did you have occasion to observe the manner in which Miami-Dade County employees sorted ballots, and handled ballots?

A In the course of that process right there, on the 19th, I did, indeed, and it was pretty well described by the prior witness that there was a lack of general familiarity as they began this new process.

Q Stop there for a moment. Did you also have occasion, later on to see the county employees handling ballots?

A Oh, yes, on the following day, Monday and Tuesday, the 20th, and 21st, there was a full, almost 12-hour day of the hand canvassing process that was going on, like 25 tables, and I was, like, a floor manager during that entire process, and my job was to observe that.

Q Did that happen for 12 hours only on the 20th, or also

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on the 21st?

A Both days. Generally, it was scheduled from eight in the morning, until, approximately, eight at night, and there were county employees at each table where these precincts were being counted.

Q Was this a process by which Miami-Dade County employees were attempting to manually count or look at the ballots from precincts that ultimately by sometime on the 22nd had mounted up to somewhere between 15 and 20 percent of the precincts?

A Yes, this was the hand recount process that's been described, and it was undertaken during that period on the 18th floor of the county office building.

Q You mentioned there were 25 tables. Can you give us all a mental image, as best you can, in your words, as to what was going on, on the 20th, and the 21st, with respect to the sorting of ballots?

A Yes, the room was about the size of this room, except considerably longer, so it was a large room on the 18th floor. There were large conference type tables set up, and there were two employees on open sides of the table, first thing Monday morning.

And as the precinct ballots were brought to the table by Board of Elections employees, and seals broken, and nine ballots placed on the table, they began a process of manually counting and examining each of the ballots that was brought from

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that precinct.

Q Now, I'm going to come back to the 19th, and the 20th, and the 21st in a minute. I'm going to ask you some particular questions about what you observed. Before I do that, though, did you have any other occasion after the 21st to see any of the Miami-Dade County employees handling ballots, or otherwise dealing with ballots, from your own observation?

A No, I didn't. I came in there on Wednesday morning --

THE COURT: I think you've answered his question, so let's just stick right to his question, if you will.

MR. TERRELL: Thank you, Your Honor.

BY MR. TERRELL:

Q Mr. Spargo, let's talk about what you observed on November 19th. Would you tell Judge Sauls in as much detail as you can remember, what you observed on November 19 with respect to this partial manual recount?

A On the 19th, it was in the -- that was the sorting room, and what I recall, first, that morning on Sunday morning, was an application was made by a representative of the Republican Party to, if you will, vacuum up the chads, and vacuum the floor, so that we could have, if you will, an inventory or an accurate estimation of whether or not new chads were generated as a result of the sorting process.

Q You mean the third machine sorting, so you could get to see what were the so-called undervotes?

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A Yes, yes, and that request was denied by the three members of the Canvassing Board who were present in the room.

And at that time, you could see, if you will, an accumulation on the rugs pretty much. So there was no willingness, if you will, to allow an inventory process for the new chads.

Q Did you try to preserve that amount of chad as evidence?

A Well, we did, we asked if the rugs could be rolled up, and we could isolate the new generated chad, but that was denied, as well.

Q Are we talking about one, two, or three chads that you saw on the floor of the counting tables -- not the counting tables, on the floor of the machine room on November 19th, or how much chad are we talking about?

A There was a -- at the beginning of the morning, after the request was denied, I just kind of walked around the room and visibly observed the rugs and the floor. And kind of made my own estimate of how much was there, and there was none on the tables.

And at the end of the day, and during the course of the day, I would examine the tables, and the floor around these counting machines, the 12 or -- 12 machines, I think, were actually used, and there was a substantial accumulation of chad being generated in this process, and periodically I'd count the

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accumulation of chad either on the table or on the floor where it spilled.

Q Would you tell the Court about how much chad, new chad had been generated with this third machine recount on November 19th that you personally observed?

A I'd say, estimate, there was at least 1,000 new pieces of chad, minimum, in the course of this, that was being generated in that process, and you'd see that on the tables where the machines were, you know, very fast counting the ballots, and then accumulated around the base of the machines.

There was also track, because there were people walking around and moving, and it was also being tracked over into the area where they were storing the trays.

Q Were these 1,000 chads what you were trying to ask the Miami-Dade County to sweep up and hold so that if anybody sometime wanted to see it and determine whether this created a problem for degradation of those ballots as evidence, that the Court, Judge Sauls, could take a look at it?

A Absolutely. We wanted to differentiate the chad that had been used in previous elections that may have been accumulating on the floor and the rugs, and isolate the newly created chad that resulted from this sorting.

Q Let's talk about November 20, and 21. First, tell me just generally what you observed on those two days. Set the picture for all of us of what -- where you were, and what others

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were doing with respect to what turned out to be a partial manual recount.

A The process would begin each morning with the two employees on opposite sides of the table, at least Monday, and then there would be a Republican observer, and a Democrat party observer at the end of that table. Each of the tables had placed thereon a piece of paper with the number of the position of the presidential ballot, so that the Vice President Gore was six, and Governor Bush was four, and the other candidates had their numbers there. Then there was a place for overcounts and undercounts ballots to be placed.

And the process began by the ballots being placed on the table, only the board or county employees were allowed to touch the ballots. There was virtually no, if you will, communication, or dialogue between the watchers, or observers, and the county employees. And there began a process whereby the county employees would pass the ballot from one to the other, and turning it so that the observers could see that there was no chad, and that there were no overcounts, and that the ballot was correctly placed in the pile for the candidate for whom the ballot had been cast.

Q Let me stop you. So on November 20, and 21, employees of Miami-Dade County were -- I'm not accusing them of anything, but were bending the ballots, and were looking at the ballots, at these 25 tables?

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A I'm not sure at that point I would characterize, in that part of the process, that they were actually doing that. It was more of a holding it out and observing it.

There was a lot, during the course of the handling, especially after they had been put in piles, they were then placed in piles of ten, and during the course of that, you began to see this process of, if you will, fanning. And the way people -- many people were counting them, you'd see that they were actually rubbing their fingers right over the area where the presidential column was, so there was a manipulation that was going on during the course of this process.

Q Well, when you say, "manipulation," let's be clear, that word has two meanings. You're not suggesting that Miami-Dade County employees were manipulating the ballots in order to create votes where there weren't any, were you?

A No. By, "manipulation," there was a process going on whereby the ballots were being handled and or fanned and twisted so as to allow them to be counted.

Q At the end of these two days, or over the course of these two days, which mount up to a total of 12 hours, 12 hours on the 20th, 12 hours on the 21st, during that time, did you have further occasion to see chad?

A There would be an accumulation of chad periodically at some tables, but it was by no means what we had seen at the 19th floor. But periodically you'd go over to a table and there

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would be three or four new pieces of chad on the tables, and you'd either see it, or in many instances, a watcher would call you over and say, "What are we supposed to do with the chad?" And, of course, we didn't touch it. We just made a note.

Q All right, sir. And in addition to the county employees handling these ballots, in fact, the three members of the board from time to time handled certain of the ballots, correct?

A Part of -- yes.

Q All right. And when the Canvassing Board was handling it, and in particular, these 10,000 or so-called undervotes that Plaintiff Vice President Gore's lawyers talk about, did the Canvassing Board manipulate these ballots physically?

MR. GREENBURG: I'm going to object to counsel's constant use of the indication of manipulate. It's hard to do a manual recount --

THE COURT: Rephrase the question.

MR. TERRELL: I thought I made clear that manipulate --

THE COURT: Well, don't use the word any more.

MR. GREENBURG: Thank you, Your Honor.

MR. TERRELL: All right, judge.

BY MR. TERRELL:

Q Did the Canvassing Board members touch the ballots with their hands and move the ballot around in a flexible manner?

A The ballots, when they arrived up to the

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Canvassing Board, came in the envelopes that were described with a precinct number.

And Mr. Leahy would be the first, generally, to open the envelope, and he would be the first, if you will, to handle or grasp the ballot.

My observation of what I watched him do when I was out on the floor on the two-day period, and when I went back and sat as an observer behind the Canvassing Board, was that in many instances, he would, first, just look at the ballot and then pass it over to Judge King, either request a no-vote comment, or whatever the particular vote was.

And in many, many instances, however, I would observe the first order that Mr. Leahy would do would be to hold it up in such a way to examine the plane on the back of the ballot, and in many instances, similarly, grab the front of the ballot and put kind of a wave, if you will, in the ballot.

Q All right, sir. I think we cleared up what I meant by manipulate the ballots. It's the way that I was referring to it.

Did you observe anything else about the physical handling of the ballots as it might relate to how -- the condition that those ballots might be in today, if some were here under lock and key in Tallahassee?

A Well, the handling of them, at least all the ones that have been counted, are -- have been subjected to a lot of mishandling, if you will, to the extent they've been impounded,

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they've been twisted, they've been moved around, rubbed up against each other, and I think, to many degrees, to the extent that new chad has accumulated, those ballots have been substantially changed.

MR. GREENBURG: I'm going to move that that answer be stricken. This witness has no basis for making a conclusion that those ballots were in any way, shape, or form, mishandled. They have been touched, because a manual recount can only be done by hand.

MR. TERRELL: May I respond, Your Honor?

THE COURT: All right.

MR. TERRELL: Your Honor, and Mr. Greenburg, the point is not that there has been a purposeful mishandling by the Miami-Dade County board at all, or that they've done anything wrong, but we've been through an extraordinary period over the last several weeks, whether these ballots have been handled and handled, so that's the point of the testimony.

THE COURT: I understand. I overrule the objection, the witness can answer if he has any particular knowledge about it, if he observed how they were packed, and this, that, and the other. If he didn't, all he said is just pure supposition.

BY MR. TERRELL:

Q Do you know this of your own observation, or is this just pure supposition?

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A In the course of the packing and repacking of these ballots, for example, on the 20th, and the 21st, these ballots were removed from the trays on the 19th floor, repacked into a carrying case, transported to the 18th floor, where they were then taken out and placed on the counting tables.

And in the course of that, whether by experience, as card players, or not, they're always banging them on the table, and there's just considerable, in the course of the packing and repacking, undue handling of those ballots.

MR. GREENBURG: I'm going to move that the answer be stricken. This gentleman --

THE COURT: Overruled.

BY MR. TERRELL:

Q Now, sir, I want to move to a little bit different question. I take it you were in a -- well, let me start over. Did you observe the supervisors as they looked at some of those so-called undervotes on November 20, and 21?

A I did, on the --

Q Just yes, or, no.

A Yes.

Q Let me ask you this: Was there any occasion in which you saw counted as a vote for President, for anybody, Bush, Gore, a ballot that had a clear punch through it for one of the candidates, and a dimple, or indentation on the same ballot for another candidate?

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A While I -- yes.

Q All right. So that ballot wasn't thrown out as being a spoiled ballot because you had two votes, instead, you saw it counted as an accurate vote, correct?

A Yes.

Q Who did it go for? Did it go for the dimple chad, or did it go for the clear punch?

A It went for the clear punch.

Q Let me, sir, finish up by just asking you something about Plaintiff's Exhibit 31, which I believe I have over here.

MR. TERRELL: Your Honor, may I approach?

THE COURT: You may.

BY MR. TERRELL:

Q This is Plaintiff's Exhibit 31, it's in evidence. And, Mr. Spargo, here is Plaintiff's Exhibit 31. This -- do you see that this is the transcript of the hearing before the three-member Canvassing Board of Miami-Dade County, starting at 1:30 p.m., on November 22, 2000, after the Florida Supreme Court had ruled, I believe, the day before?

A Yes, I see that on the front page.

Q All right, sir. Let's take a quick look a page 24, and, in particular, would you read line six, starting on page 24, on through page 25, and that much so far right now? And if you'll read it carefully and slowly, and indicate who is speaking among these county canvas board officials.

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A Beginning on page 24, at line six, Judge King remarks: "Thank you, Mr. Young. I want to thank both representatives of their various parties for their persuasive and meaningful arguments today. Mr. DeGrandy (phonetic), just one point of clarification. I know you all like to say that to us, so I'm going to say it to you" --

Q Let me stop you. I'd like you to jump to the next page, if you would, page 25, and start at line 12 to save time. Start at line 12 on page 25, and this is Judge King continuing to speak.

A "It became evidently clear this morning around 6:30 sometime, 7:00, when we" -- there's a word that is not clear in my copy --

Q Looks like, "we were coming"?

A -- "we were coming here to start our cast for the eight o'clock session that that was going to be, as David had already said, a physical impossibility because of time, you can't count the remaining hand ballots in this county by Sunday.

Therefore, the only alternative that this Canvassing Board had to meet the needs of the people and meet the needs of the parties was to try to adopt what was originally suggested, and discussed in open forum with you present, Mr. Martinez present, I believe Mr. Geller, and Mr. Coffey.

"But with that said, I do not, sir, disagree with you, that it was probably and could reasonably be an impossibility for

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these three human beings, for the next 48 hours, that it might be impossible to do so.

"Mr. Young, and I do not disagree that every attempt should be made to do so, but not at the expense, sir, and I hope you understand this, because the rep is watching us, not at the exchange of disenfranchising one voter.

"We have -- it's plan there --

Q Could it be, "We have been going over" -- can't read it.

A "We have been going over that over and over, again, Mr. Leahy has never suggested that, the Canvassing Board would never support that" --

MR. COFFEY: Your Honor, I'm going to object to reading this in evidence. We've got lots we can read, too. We're trying to move this along.

MR. TERRELL: This is the last, if he can just continue reading this.

BY MR. TERRELL:

Q But if you'll go back, you missed a word.

A "Mr. Leahy has never suggested that, the Canvassing Board will never support that, but at the same time, limitations, from hour to hour standpoint, with the risk that we could not certify a proper election on Sunday, the Secretary of State, would be a great travesty to our nation and country.

"So therefore, what I would like to do at this time is

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to ask the board, now that we have had a fair opportunity to hear all of this, knowing the constraints and knowing where we have been, where we have come to, and where we may go, that we take another vote to decide whether or not this Canvassing Board may proceed at this time.

"I'm going to vote first, since its always the chairman's prerogative, I see some of our Congressmen smiling, they know all about that, I'm going to vote, first, and therefore, I vote, no. I believe we should stop at this time. We cannot meet the deadline of the Supreme Court of the State of Florida and feel it's incumbent on this board to count each and every ballot and to not do a hand recount, because we could potentially, even under the proposed plan of this morning, could disenfranchise a segment of our community."

Q Let me stop you there. Did you observe both the morning and an session of November 22?

A I was there for each of the sessions.

Q What was proposed in the morning that Judge King said he was not going to go along with?

A In the morning meeting was the cancellation of the manual recount provisions, and the board agreed to continue only the count of the 1,200, or whatever remained, the undercount ballots.

Q What were you understanding Judge King to be --

MR. COFFEY: I'm going to object. We're asking a

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Republican operative to interpret the transcript. This Court can read the transcript.

MR. TERRELL: He was there, Your Honor, and he was able to testify of his own knowledge. But for clarity, for Your Honor's sake's, unless you want to read several thousand pages of transcript in the next day or two, I think this would be helpful to.

THE COURT: If the gentleman wants me to, I'm sustaining his objection.

MR. TERRELL: Fine.

BY MR. TERRELL:

Q Let's go to the next page, sir, page 28. And in particular, line 14 on page 28, this is still Judge King speaking --

MR. COFFEY: Your Honor, if I may object, again, and make the suggestion that we simply hand to you copies of the pages that you think are worth it, he keeps wanting to read this thing.

THE COURT: What pages are you talking about?

MR. TERRELL: I'm talking about page 28 through -- and 29 and 30, and the significance of it.

THE COURT: I don't need him to read it to me. Just ask him questions whatever it is he observed, concerning the subject matter in that record.

BY MR. TERRELL:

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Q Let me ask you, sir, these pages that I'm referring to, pages 25 through 30, what do they reflect based on your observations of actually having been there?

A The meeting held at 1:30 p.m., on the 22nd, canceled the entire voting process. And the vote, my recollection is, was to cause the certification that would be forwarded to the Secretary of State to the recount on November 8th.

Q When you say, "canceled," do you mean this canceled the partial hand recount?

A The entire manual recount process was stopped on -- at 1:30 on the afternoon of the 22nd.

Q And are the reasons stated at pages 25 through 30?

A Yes.

MR. TERRELL: Your Honor, pass the witness.

MR. KLOK: Just a couple questions, Your Honor.

THE COURT: While you're coming up, did you say the November 8th count, is that the -- we had the first count, and then you had the automatic required --

THE WITNESS: It was the recount.

THE COURT: Is that the count you're talking about on November the 8th?

THE WITNESS: That's right, it was the recount.

THE COURT: The required mandatory recount? All right, go ahead.

CROSS EXAMINATION

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BY MR. KLOK:

Q Mr. Spargo, I wanted to go back to a little bit of your testimony. You testified that while you were observing the Canvassing Board that only referred to the presidential race, correct?

A That's correct.

Q That if there was a fully-punched through hole, and a dimpled chad, that what was counted as a vote for the fully punched-through hole?

A That was a particular ballot that was presented from the floor that was sent back as part of the manual count, and it was to be voted for position number six, notwithstanding that there had been a clear perforation in the number four position.

Q Now, what would they do if there was just a dimple in the presidential race?

A Those ballots never came up to the board for the Canvassing Board's determination. They were, if you will, just handled right there, notwithstanding that someone had objected to them, the determination was made right at the tables, and they were just counted.

Q But in the case of the first example you gave, the dimple was viewed as being a mistake, and the punch-through was viewed as being the vote?

A That's right.

Q But in other instances, what was viewed as a mistake

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there was viewed as a vote, correct?

A The Canvassing Board, they, unquestionably, from my observations, were counting the ballots where there was only a dimple or an impression.

Q So a dimple could either be a vote or a mistake, correct?

A That would easily be the conclusion.

MR. KLOK: Thank you, Your Honor.

CROSS EXAMINATION

BY MR. COFFEY:

Q Good afternoon, Mr. Spargo, I'm Kendall Coffey one of the attorneys for the Vice President and Senator. As I understand, parts of the thrust of your testimony this afternoon is to, in effect, discredit, if you can, the reliability and integrity of some of the processes that were used by Supervisor Leahy and the staff, correct?

A I only testified, I believe, to what I observed, but I -- all right.

Q Isn't it true that the last time you were on the witness stand on matters of reliability and integrity in an election scenario, you took the Fifth Amendment 19 times?

MR. TERRELL: This is what you call your basic bushwhack. He knows it's not proper. He's coming in to embarrass him, and I suggest he tender whatever evidence he's got. I think it's irrelevant.

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MR. COFFEY: Your Honor, this man is attempting, as they conceive it, to question the reliability and the integrity and process of public officials and their staff. I think we're entitled to know who the man is that is coming forward to say we basically can't rely on the work that's been done by Leahy's office in segregating ballots for the manual recount.

THE COURT: I think he said we can't. You can draw your own conclusions about that. You can argue about it. What he's testified to is what he has observed, is all that I knows he's done.

MR. COFFEY: Just going to the credibility of the witness.

THE COURT: It doesn't matter is. If it doesn't, we're going to have a subsequent hearing, I can tell you.

MR. TERRELL: Might I inquire, if the matter that counsel wishes to bring to the Court's attention --

THE COURT: Why don't you discuss it with counsel, if you can agree and disagree. I'm not going to stop these proceedings. I'm just telling you what the position is going to be, and I hope you're right.

(DISCUSSION OFF THE RECORD.)

MR. COFFEY: Your Honor, I have background information which I think goes to the reliability of the witness, which is not based on the events.

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THE COURT: All right. Let's take a recess, 15 minutes, with counsel.

(CONFERENCE IN CHAMBERS COMMENCED.)

MR. TERRELL: I would object to the press being in here when it's a matter not properly brought up by counsel.

THE COURT: Excuse us.

MR. COFFEY: Your Honor, simply stated, we believe that this witness is subject to impeachment, based on a series of events that occurred that involved an investigation by the Commission of Government Integrity of the State of New York.

That involved not only the multiple refusals to answer questions based on a Fifth Amendment, but also, according to our reports, a contempt violation at one point and arrest for failure to submit to questions, and his resignation from several posts as a Republican counsel, because he represented the Republican committee.

I think if he's going to come forward and testify in a matter like that, we're certainly entitled to have this matter brought to Your Honor.

MR. TERRELL: Might I ask counsel a question. When did this occur?

MR. COFFEY: According to my reports, 10 or 11 years ago.

MR. TERRELL: So this is 10 or 11 years old?

MR. KLOK: Was he convicted of a crime?

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MR. COFFEY: It's a showing of propensity to refuse to provide candid testimony in matter involving elections.

MR. TERRELL: As counsel for Governor Bush, at least in the state of Texas, Mr. Richard and Your Honor, particularly Your Honor, will speak for the State of Florida, that's not admissible.

MR. RICHARD: It's the same in Florida.

MR. KLOK: It's improper, I'm surprised.

THE COURT: I'm going to sustain the objection. That doesn't have anything to do with any crime involved here. Anything further as to that, and we're going to have a hearing on contempt tomorrow morning. All right.

MR. TERRELL: And if there's anything else like that, I'll move for contempt on you.

MR. COFFEY: You've got to do what you've got to do.

(CONFERENCE IN CHAMBERS CONCLUDED.)

* * * * *

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PROCEEDINGS

THE COURT: Cross Examination?

MR. COFFEY: Thank you, Your Honor.

CROSS EXAMINATION

BY MR. COFFEY:

Q Mr. Spargo, in addition to the things you described as your observations, with the Canvassing Board and the whole recount dynamic, there were some additional things that took place as well, weren't there?

A Yes.

Q In fact, we can get this -- I want to call your attention to the photograph behind you, Mr. Spargo, and ask if that's you?

A Yep, that's me sitting there in my blue jeans.

Q I gather you're a part of a group of demonstrators, does it appear, sir?

A I was there as an observer on the 19th floor, and the people around there were observers, as well, several of them who I see are lawyers.

Q Yes, sir. And were you holding your hands for any particular reason, or does it appear that you were clapping and chanting and sort of yelling together, correct, sir?

A Yes.

Q And, in fact, that sort of event is what took place between the morning meeting on Wednesday, November 22nd, when

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the Canvassing Board chose to go to a manual recount of all the undervotes and in the afternoon it was shut down, correct?

MR. TERRELL: Excuse me, this is beyond the scope of Direct.

MR. COFFEY: Your Honor, if I may.

THE COURT: He is on Cross. I'll give him some leeway.

BY MR. COFFEY:

Q That's the kind of thing that was going on, right, sir?

A That was the time period that you're describing.

Q And you're present, weren't you, when Supervisor Leahy, and the others said they could do a manual recount of the undervotes, and do them at a rate of 300 an hour, you were present for that, weren't you?

A He did describe a rate, and if that's a rate he indicated. He also had so many per minute, I don't remember what the exact number was.

Q So in the morning with Judge Lehr and Judge King concurrent with the information of the Supreme Court fully available to them, and with the Canvassing Board members themselves planning on doing the recounting, they said they would get it done in time, and they would do it at the rate of 300 an hour, right?

A I'm not sure that I heard that. I heard that they stated the rate at which they would have to go forward, in order to succeed, and I'm not sure that they were even able to conclude

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that they would be done by Sunday.

Q Okay. Well, let me just show you, then, if it will refresh your recollection, page 14 of the transcript of November 22nd, 8:00 a.m., and toward the bottom of the beginning of line 19 are some statements by Supervisor Leahy.

Does that refresh your recollection, sir, about the fact that, in the morning -- and I can show you another page, where 300 an hour is also stated, that they'd have to move, but they could get it done at 300 an hour, does that refresh your recollection?

A That refreshes my recollection that there had to be some rate of accomplishment on a very tight timetable to accomplish that.

Q Uh-huh (affirmative response). So if I say I think it's doable, I think we can accomplish it, it refreshes your recollection that the Canvassing Board determined in the morning for this and other things that it would get done on time, the undervotes, only, right?

A That was what the record states.

Q And, obviously, we heard before, we all know what happened in the afternoon, it was shut down.

I want to back up a little bit and talk about this discussion you had about chads falling out, and things like that.

Now, you recall, sir, that these issues of why you couldn't proceed with the computer generated separation were

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brought to Court in Dade Circuit Court no less than two times, are you aware of that?

A I'm aware of it based on your telling me so.

Q Well, it was in the newspapers that the Republicans, and you were involved with a team that went to Court Saturday night --

MR. TERRELL: Excuse me --

THE COURT: Sustain the objection. Rephrase your question. We need questions, not statements.

BY MR. COFFEY:

Q Do you recall the fact that the Republicans went to Court Saturday night to challenge the separation process and other things that you have described here in Court before Judge Sauls today, do you recall that?

A I'm not aware of that.

Q You had no awareness that they went to Court on that weekend?

A I just -- if we're talking about the 18th, I had just arrived that afternoon in Miami, so I was not aware of that.

Q What about the following Tuesday, you are aware that the Republicans went to Court that morning, aren't you?

A Sir, I was busy enough focusing on my responsibilities of watching the process without worrying about what other lawyers were doing and where they were going to Court.

Q But my question really was: Were you, or weren't you

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aware of the fact that the Republicans went to Court on Tuesday morning, after having been previously rejected by the Dade Circuit Court, before another Dade Circuit Court Judge to challenge the procedures for separating the undervote ballots that the supervisor of the elections was undertaking?

A I'm not aware of that.

Q Not aware of it? And if I were to walk forward and show you copies of pleadings, that would not refresh your recollection?

A No.

Q We'll save time on that. By the way, you're obviously based in New York; is that right?

A That's right.

Q And New York, I think they vote with machines that use levers?

A Lever machines, generally, and some, many counties use now a punchcard system in their absentee ballots.

Q And in New York, you seem to make an issue of the fact that only the elections department personnel were handling the ballots, Your Honor, is that --

A Yeah, what's what I observed here, and I think under New York law, that's required. But --

THE COURT: Let's don't talk about New York law.

Q In Florida, though, absent an order from Judge Sauls, that the only folks that could physically handle a ballot would be

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the staff of the Elections Department and the Canvassing Board members; is that true?

A That's true.

Q Why, then, a little earlier did you indicate in response to Bush's questioning that you were troubled by that, that they wouldn't let you handle the ballots?

A I don't know I was troubled by the fact that I wasn't allowed to handle the ballots.

Q Now, you're not a Florida lawyer, so you're not aware of case laws such as Spradley v. Bailey, a First District Case, or anything like that, correct?

A That's correct.

MR. COFFEY: Your Honor, let me see if I have any more questions.

THE COURT: All right.

BY MR. COFFEY:

Q And just to be clear on one thing, with respect to the 9,000-plus ballots, respecting the undervotes that no human eyes have ever looked at, those have not been touched by anybody, to the best of your knowledge, not supervisor's personnel, no Canvassing Board, they haven't been physically touched by anyone, right?

THE COURT: If you know, if you don't know, say you don't know.

A One of the things that troubles me --

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THE COURT: If you know, say you know, if you don't, don't say anything.

A I don't know.

THE COURT: All right.

MR. COFFEY: Thank you, Your Honor.

THE COURT: Redirect?

MR. TERRELL: That's it, Your Honor.

THE COURT: Well, I have one question, if I may. You were in this building, they just put your picture on there, and you were on the floor doing what?

THE WITNESS: I was sitting down, actually, trying to get out of the way, because I was going to be perhaps the next observer.

THE COURT: What were you clapping for?

THE WITNESS: Apparently Republicans aren't very good clapping in unison, so I was trying to at least.

THE COURT: What was everybody clapping for, what was the reason?

THE WITNESS: Well, there was just some, if you will, I don't want to call it chanting, but that would be as close as it would be to some remarks that had been going on at that time.

THE COURT: What were you chanting?

THE WITNESS: The one that comes to my mind is that the press was being kept out of the area, going in, and they

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wouldn't let the press in.

THE COURT: Did you break into that building?

THE WITNESS: Absolutely not, we knew everybody, and everybody knew us, we worked together for the last two days.

THE COURT: This was a group of the observers that were already in there?

THE WITNESS: Sure.

THE COURT: I don't have any other questions, either of you have any questions that I may have inquired about?

MR. TERRELL: I do have one question.

REDIRECT EXAMINATION

BY MR. TERRELL:

Q Mr. Spargo, did you riot at any time on November 22nd, or at any time when you were in Miami in the month of November?

A Absolutely not, nor did anybody tell us to be quiet or leave. We were generally a group of lawyers who were, as you can see in the picture, sitting around waiting. Many were disappointed that they couldn't go in and observe the process, because it had been very open for the last two days.

And I think there was -- I don't want to call it frustration, but there was disappointment, I think, that they couldn't go back and see, because of the narrow confines of the tabulation room in the back corner where it was secluded from any public viewing.

Q Were you making a first amendment demonstration, I

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guess I would call it?

A It's a lovely thought. I'm not sure my mind was quite elevated to the First Amendment.

THE COURT: All right.

MR. TERRELL: That's all I have.

RECROSS EXAMINATION

BY MR. COFFEY:

Q Were you present that morning when someone stated before the Canvassing Board, page 50, line 17: "This is a full protest going on and we can't bring people in or out. We have people attempting to get into a fight with the officers or members of the media." Were you present when that was said?

A I was not present when that was said, nor can I ever imagine anything that was described that relates to anything saying that, there was no fighting, there was no rough housing there was a gracious courtesy to everybody moving in and out, the employees through the glass that we saw were smiling and laughing, and the receptionist was there all the time. This was a relatively good-natured association that was going on there.

Q Were you present with a Republican attorney?

THE COURT: Mr. Coffey.

MR. TERRELL: I guess this is hearsay, and I object. This is also beyond the scope.

MR. COFFEY: Your Honor, I'm just following up on what he's saying.

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THE COURT: You're just reading whatever it is you want to read, the next thing we'll have a newspaper in here, reading.

MR. TERRELL: I object.

THE COURT: All right.

MR. COFFEY: Can I ask one question?

THE COURT: One question.

BY MR. COFFEY:

Q Were you present when Supervisor Leahy said --

MR. TERRELL: I object.

MR. COFFEY: He gave many statements as to what happened in the transcript.

THE COURT: Sustain his objection. I don't care who was present, if somebody said something, bring them in.

MR. COFFEY: I would direct Your Honor's attention.

THE COURT: I don't need to have any direction, I'll read the transcripts, if that's in the transcript.

MR. TERRELL: That's all I have, Your Honor.

THE COURT: May the witness stand down? Call the next witness.

MR. TERRELL: Your Honor, Governor Bush and Secretary Cheney call to the stand Mark Lampkin.

MR. BECK: Your Honor is, I wanted to correct myself, I misspoke, this is apparently one witness, we have one after this, and then we'll have one witness after this.

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THE COURT: We'll see some light at the end of the tunnel.

MR. DOUGLASS: Your Honor, I think we should mark this for identification, since it was used in the examination.

THE COURT: You wish to submit that as an exhibit?

MR. DOUGLASS: Yes, sir.

THE COURT: What number would it be --

MR. TERRELL: They've marked it as Plaintiff's, Exhibit 60, Your Honor. I think it's irrelevant, but I don't object.

THE COURT: Let the record reflect the objection overruled.

(PLAINTIFF'S EXHIBIT 60 RECEIVED IN EVIDENCE.)

* * * * *

Whereupon,

MARK LAMPKIN

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. TERRELL:

Q Would you please state your name, please, sir.

A It's Mark S. Lampkin, L-A-M-P-K-I-N.

Q Mr. Lampkin, where do you live?

A Right now, in the Washington, D.C. area.

Q Where were you born?

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A In New York, actually, New York, New York, but grew up in Providence, Rhode Island.

Q What is your education, Mr. Lampkin?

A I have an undergraduate degree in Holy Cross College in Worcester, law degree in Boston College Law School, obviously in Boston, Massachusetts.

Q Are you a registered Republican?

A Yes, sir.

Q Have you worked in the Bush-Cheney campaign?

A Yes, sir.

Q Did you have occasion on November 29, to be in Miami-Dade County?

A Yes, sir.

Q What were you doing there?

A I was a Republican observer at the supervisor of elections office as they were preparing to transport under Judge Sauls' order the so-called undervotes to Tallahassee.

Q All right.

MR. TERRELL: Your Honor, may I approach the witness?

THE COURT: You may.

BY MR. TERRELL:

Q I want to put in front of you Exhibit 62, and I'm going to hand you Exhibit 63, these are Defendant's Exhibits 62, and 63.

MR. TERRELL: And, Your Honor, if the Court would indulge me, I'd like to hand them up to you at this time,

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really, for you, because they've not yet been offered, and the witness will testify about them. I don't know what we --

THE COURT: All right, sir.

MR. TERRELL: I'm sorry, Your Honor.

BY MR. TERRELL:

Q Mr. Lampkin, how long were you at the Canvassing Board of Dade County on November 29?

A From approximately 9:00 a.m. until probably physically didn't leave the building until close to 7:00 p.m. that evening.

Q All right. And while you were there, did you have occasion to meet with Miami County -- I'm sorry, Miami-Dade County officials in the elections process?

A Yes, sir.

Q Did you, for example, meet with supervisor David Leahy?

A Yes.

Q Okay. And what was you were purpose in being there?

A Well, if you will, the morning was a little chaotic, because we didn't know what was going on, and so I thought it was best that I go down to the courthouse -- excuse me, the supervisor's office to see how they were going to proceed with the transportation of the ballots.

So I got there around 9:00 a.m. And I was somewhat surprised to see that they had already started the process of -- undertaken the process of transporting. And I was immediately -- I approached David to get a sense of what they were going to do

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throughout the day, how he was going to proceed, what was going on, because that was the first day I had been in Miami.

Q Let me stop you there, you said you approached David, I'm not sure -- perhaps others know who that is, is that David Leahy?

A Yes, sir, the Supervisor of Elections.

Q For Dade County?

A Yes, sir.

Q During the course of the day while you were there, watching the ballots being boxed up to come Tallahassee, to this Court, did you receive from any Miami-Dade County official Defendant's Exhibit 62?

A Sixty --

Q Two?

A Yes, I did.

Q The same question with respect to Defendant's Exhibit 63?

A Why yes, I did.

Q Who did you get Exhibit 62 from?

A I received that from Mr. Leahy.

Q And who did you get Exhibit 63 from?

A From Mr. Leahy.

Q Were you the only person Mr. Leahy shared these with, or did you observe him giving them to anyone else?

A No. We had struck an agreement in the morning,

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Mr. Leahy and I, that I had requested copies of these documents as they were prepared, and he gave them both to me, and the democratic observers, plural, and on occasion, someone in my staff, if I happened to be out of the room.

Q Without testifying about the substance of Defendant's 62, that is, what it reflects, as matter of substance, can you describe just very generally for the record what Defendant's Exhibit 62 is?

A This is a compilation of sheets that were at the four hand tabulation tables that were in the room where the undervote segregation process was being ordered by county employees throughout the day.

There was a set of this -- I believe this is the November 8th canvas report. There was a set of these in each one of the four stations where county employees were counting out manually the number of undervotes by precinct throughout the day.

Q Was this a document that was marked on, to your knowledge, on November 29, by county officials?

A Yes, sir.

MR. TERRELL: Your Honor, we offer Defendant's Exhibit 62.

THE COURT: Without objection, it will be marked and received in evidence.

(DEFENDANT'S EXHIBIT 62 RECEIVED IN EVIDENCE.)

BY MR. TERRELL:

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Q Now, Mr. Lampkin, I want to turn to Defendant's 63. Again, without getting into the substance, because I'm going to ask about both of these exhibits in a few minutes, but for right now, just generally, what is Defendant's Exhibit 63 that Mr. Leahy gave you?

A I observed Mr. Leahy, and I believe it's his deputy, Ivy Coreman, preparing this sheet, or these sheets, I should say, at the end of the day, as they were attempting to ascertain -- they were transferring the data from the Exhibit 62, to Exhibit 63, as a record of what the actual, or undervote counts were in various precincts.

Q As it stood on November 29th?

A Yes, sir.

MR. TERRELL: Your Honor, we offer Defendant's Exhibit 63.

MR. KITCHEN: No objection, Your Honor.

THE COURT: Without objection, let it be marked.

(DEFENDANT'S EXHIBIT 62 RECEIVED INTO EVIDENCE.)

BY MR. TERRELL:

Q Let's go back, we'll come back and talk about Defendant's Exhibit 62, and 63, as time comes along, but what I would like to do is see if you can describe for us what you observed with respect to what was going on with the ballots, 625,000 ballots on November 29th, could you tell us?

A Yes, sir. As I say, I arrived around 9:00 a.m., give

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or take a few minutes, into what they -- I guess they described at the counting room, and there was a -- at that point, there were eight county employees, seated at four tables, sort of in the very first row, if you will, of the room, directly in front of the door.

And they had just begun the process whereby Mr. Leahy, and, again, I believe she is his assistant, Ivy Coreman, they would take -- retrieve from mail trays that were just to the right of those tables, precinct envelopes that contained the then segregated undervote counts from various precincts. They would grab, say, handfuls of them, and deposit them in front of the two workers at each table.

Then the workers would, one of the workers, would open the ballots from the envelopes. They would place the -- that used, spoiled envelope in front of them, then they would undertake an examination count, I call it a tabulation, so -- I think that's the most accurate way to describe it, a count of each of the precincts number of undervotes.

Then one worker would count, the second worker would then get the count from the worker who was counting, and then referring back to Defendant's Exhibit 62, mark that sheet, the tally report, in a variety of ways, depending on what the count was.

Q Mr. Lampkin, we heard testimony about 10,750 undervotes, or maybe 9,000 undervotes, we've heard

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different numbers. What was Dade County doing still counting undervotes, or trying to figure out how many undervotes there might be on November 29th, if you could tell from your observation?

A I believe -- and this is based on observations through the course of the entire day, that they were trying to actually ascertain the item number of undervotes that existed in the various precincts and absentee ballots throughout the county.

Q In fact, if you'll look at Defendant's Exhibit 62, sir, I notice there are checkmarks in ink beside some of the numbers of typed undervotes, the typed undervote column, checkmarks by some, by precinct. But then on others, I see a number, for example, handwritten, 14, instead of the typed number, 15.

In other words, there's fewer, there's one less undervote, apparently, in Precinct 42 than had previously been thought, prior to November 29th, is that your understanding of what this is?

A That's my understanding.

Q Is this handwriting on Exhibit 62 the county employee's efforts on November 29 to figure out whether they've got more ballots that could be undervotes in these precinct envelopes, than they previously thought, or even less?

A Yes, sir, that would probably be accurate.

Q Okay. And have you taken an opportunity to try to count up on how many occasions the undervote envelope for a

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precinct had, in fact, more undervotes than had previously been thought, at least according to this record?

A My -- and this is based my counting, I did this that evening, when I received it from David, that based on this sheet, which is Exhibit 62, I believe the number of precincts that had a -- I call it the increase of the undervote, was approximately 34, could be a little more, a little less. There was a tally on some of these precincts we were talking about.

Q Are you talking about 34 ballots or precincts where there was a discrepancy between the prior number of undervotes in that precinct and what somebody was apparently doing for the county on November 29?

A The 34 represents the number of precincts, where the tally sheet, Exhibit 62, has a number of undervote counted which exceeds, as you were referring to it, the typewritten undervote count.

Q So that's -- did you say 30, or 34?

A It's about 34. Like I said, the numbers are hard to discern.

Q We've got 34 precincts up. How much went down where, apparently, there were fewer undervotes than what previously they thought, according to officials?

A Again, my -- I passed through this a couple times, it's about 120.

Q That have fewer undervotes?

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A Yes, sir.
Q That's 120 precincts?
A Precincts, yes, sir.
Q Did you ask -- and listen carefully to my question, and just answer my question, so we don't return into an evidentiary problem. Did you ask Dade County officials for an explanation of these discrepancies, just, yes, or, no?
A Yes.
Q Was any explanation given to you for this discrepancy by any Dade County official?
A No, not that I recall, no.
Q All right, sir, let me now show you, or point to you, point your attention to Defendant's Exhibit 63, this is the thing that is a different kind of tabulation that you also testified David Leahy showed to you?
A Yes, sir.
Q What do you understand this document to be, and how, if at all, does it relate to Defendant's Exhibit 62?
A My understanding is -- now, I only observed Mr. Leahy and his deputy, Ivy Coreman, actually -- I guess the word is transmitting these numbers. But towards the end of the day, I don't think we have gone through all of the precincts, yet. They were trying to ascertain the exact number of precincts where the, as you call it, the typewritten undervote, there was a decrease in that number after they -- undervotes ballots had been hand counted

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by the county employees.

So they manually transferred, checked it and transferred it to this document in order to have a more exact, or a more precise number on one sheet towards the end of the day. I don't recall the exact hour.

Q And do you recall that about the time that -- or around the time that Defendant's Exhibit 63 was prepared, or at least it was given to you, that that's the point at which Judge Sauls had a telephone conference with the Miami-Dade County people and, in fact, everything stopped at Miami-Dade County?

A I'm not exactly -- frankly, at that point, I was kind of running around --

Q If you don't know, you don't know?

A Okay.

Q So you don't know?

A No.

THE COURT: For the record, I have not had any conference with any Dade County --

MR. TERRELL: May I make the record clear, I'm talking about the hearing that occurred on November 29, before Your Honor, where you stopped various activities that were apparently ongoing without our knowledge with respect to these ballots, so that the ballots could come up here, I'm talking about Your Honor's order.

THE COURT: That's where the ballots were to be

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impounded and brought up.

MR. TERRELL: That's right. That's all I'm talking about.

Q Mr. Lampkin, is it clear to you, how many undervotes, there could be in Dade County?

A No, no, sir, not at all.

Q Okay. Does it seem to be shifting?

A Oh, certainly.

Q All right, sir. Let's talk about what you observed on November 29, concerning the handling of ballots, did you observe anything on November 29 with regard to the handling of ballots?

A Yes.

Q Please tell Judge Sauls what you observed.

A Well, as I stated earlier, the first, for probably the three or four different observations that I witnessed during the course of the day regarding handling, the first was in the very beginning, top of the day, when the hand tabulators, as I've been calling them, started counting the ballots physically, removing them from a sealed envelope, counting them out, on certain occasions during that observation, I saw people grabbing the ballots not at the corners, as they had been instructed to do, but kind of midway in the ballot.

I saw people that, if there was a larger number of ballots, actually fan or do them like you do with a set of cards or something to try to straighten them out, so you could get them

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in order.

Subsequently, I saw ballots run back through the tabulation machines, and, again, that's a two-step process, where they're removing them from the ballot trays, one worker would remove them from the ballot trays, they would then go into the tabulation machine, where another worker would operate the tabulation machine.

Then a third worker, would be where they were pulling out, and where an undervote was identified, and pull it out and stick it in an envelope, another sealed envelope. Then -- are you limiting me only to the 29th?

Q Yes.

A Okay. So those are the two -- oh, the third process I saw is on occasion, either Mr. Leahy, or his Deputy Ivy, would be called over to examine ballots.

And at that point, they would, again, they might -- there would be another hand count. There would be, on occasion, an examination of the ballots in the air, trying to see if a light would go through a hole all the way through.

And then there was another segregation process in a number of precincts.

Q Let me understand you, sir, did you see a number of ballots handled physically by county employees?

A Yes.

Q Did you see a number of ballots run through for a

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fourth time through the machine?

A Yes, I did.

Q All right, sir. Did you observe any chad while you were there?

A Yes.

Q Please slowly and carefully explain to Judge Sauls what you saw with respect to chad on November 29, at the Dade County Canvassing Board headquarters?

A I saw at least four or five instances, where a -- at one of the hand tabulation tables, before a new envelope was opened, the area in front of the hand tabulators, was completely clear of chads.

Then after having counted out the various chads -- excuse me, undervote ballots, they would reseal, and then you would see one or two, sometimes three or four chad that had actually appeared in a previously cleared area on one of the hand tabulation tables.

In addition, I saw around the area that's just outside of the mechanical tabulation machines, you would see chads either on the casing, or on the floor immediately surrounding, and on the few occasions when I had an opportunity to actually look into the mechanism of the hand tabulation -- of the mechanical tabulation machines, I would see chad lying in that area, as well.

Q All right, sir.

MR. TERRELL: I'm just about through.

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Q Mr. Lampkin, I feel like I need to ask you this question, it is of some interest to some in this room. Did you participate in a riot in Miami-Dade County with respect to the Canvassing Board at any time in the month of November of the year 2000?

A No, sir.

Q Did you create any disturbance to try to shut down the Miami County Canvassing Board?

A Oh, no, sir.

MR. TERRELL: Pass the witness, Your Honor.

THE COURT: You may inquire.

CROSS EXAMINATION

BY MR. KITCHEN:

Q Good afternoon, Mr. Lampkin, my name is Deeno Kitchen. I'm one of the lawyers for the Vice President and Senator Lieberman. You were a Republican observer, and why did you tell us you were there, sir?

A I kind of have a bizarre life. Half of my stuff is still in Austin. Half is in a storage locker in Virginia, and I'm actually kind of bunking with friends until this matter is over, and I can get my life settled, again.

Q Are you a lawyer?

A Yes, sir.

Q And you are a Republican observer, is that the role you were --

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A Yes.

Q Now, sir, let me get some basic things here. Are you suggesting that Supervisor Leahy's office did anything to compromise the integrity of the undervotes as to destroy the ability of an impartial observer, to determine the voter's intent?

A That's a complex question. I'm not suggesting anything. I'm just providing the Court with my recollection of my observations over my two-day period.

Q So you're not trying to tell us you can't rely on these ballots because of the way they were handled, you're not telling us that?

A I can only state, I'm providing the Judge and the Court with my observation.

Q Do you have any reason to believe that Supervisor Leahy's office is incapable of separating the undervotes from the other votes?

THE COURT: I believe the witness is trying to just testify as to what he saw, and not whether he's got to surmise, or reason, or this, that, or the other.

MR. KITCHEN: Okay, sir.

BY MR. KITCHEN:

Q Would you agree with us, that, based on what you saw, in order to segregate or separate the undervotes from the other votes, they have to be handled?

A Can you repeat that, again?

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Q Yes, sir. In order to separate what is determined to be an undervote from the other votes, do personnel of the office have to handle them?

A Yes, but I do have a caveat to that.

Q Well did they have to handle them or not?

A I have -- yes, but I do have a caveat.

Q What's your caveat?

A Based on my observation, and I'm certainly no expert in this, I would -- I could suggest a better way that would have allowed less handling during the course of the day.

Q Okay, sir. Fine. In order to count the undervotes, do personnel of Mr. Leahy's office have to handle them?

A Yes, with the same caveat.

Q In order to package them up when a Judge in Tallahassee says: "Ship them to Tallahassee," do personnel of Mr. Leahy's office have to handle them?

A I would disagree with that.

Q They don't?

A No, because --

Q You disagree, that's fine.

A Because, what they did, is that added an extra step at that point, because I believe there would have been a way to transport the entire previously secured ballot box to Tallahassee, as opposed to what they did, which was to read -- well, I guess, another time remove the trays, and put them into smaller boxes, so

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I would disagree with you on that.

Q So you say, you have a better way to pack them up and transport them than they have?

MR. GREENBURG: Let the record reflect, please, that Dade County's transporting of those ballots, both the first and second time were pursuant to orders of this Court, and at the second time we were told not to touch them further but pack them up, and there was not a question of a better way or other way, but it was pursuant to Court order and we had to do it the most expeditious way.

THE COURT: Let the record so reflect.

BY MR. KITCHEN:

Q Well, sir, Mr. Lampkin, can you, sir, for the Court, and for all of us, tell us the procedure of the Miami-Dade County supervisor's office for identifying undervote ballots?

A Again, I came in midstream in some of the identification. But as I observed it on the 29th, in short, here's how it proceeded.

They would remove a particular precinct. They would -- if it had -- if the undervote had been previously segregated. They would take that segregated vote in its envelope, and give it to one of the two men or two women teams, actually, who would then open, count.

There were circumstances where, if the overvote was higher after the first -- after the hand tabulators counted, then

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as previously recorded on Exhibit 62, either David, or Deputy Ivy would come again, and make some determination for what they determined to be clear votes and then make a final call on the number and then reseal them.

There were other ballots that had not gone to the tabulation machines for segregation where on the day of the 29th, the entire precinct was run through for the first time -- excuse me, I should say for the first time that day, there was a manual segregation by one of the workers, that envelope was then transferred to the hand tabulators, who would then count it, again, and that secondary process would commence if there was a discrepancy on the hand tabulation, Mr. Leahy, or Ivy Coreman would come over and count them, again.

Then there was a third attempt to look for undervotes based on his compilation of information from Defendant's Exhibit 63, Mr. Leahy had determined that any precinct which had a lower undercount record from the hand tabulation, than the one that was determined on the canvassing report of the 8th, those began the process, I should say, and I believe he only got through 50 or 75, 100 of those, were put back through the machine and that's when we received word either through a conference call or some other means, Judge Sauls ordered that all activity regarding the ballots should stop.

Q You don't question in any way the honesty or integrity of the office, do you?

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A No, I mean, they're very good people.

Q Based on what you observed, were hard-working public servants, they were doing their best to count the votes as they were supposed to?

MR. TERRELL: We've been through this.

THE COURT: I believe we have.

MR. KITCHEN: Well, if we have, Judge, would you tell me what his answer was?

THE COURT: I think he said several times that he thought they were fine people down there. He's just testifying as to what he says he saw them doing.

BY MR. KITCHEN:

Q Would you, sir, accept Supervisor Leahy's description of the method in which you determine the undervote and identify undervote ballots in his office as the way it's done?

MR. TERRELL: I object, none of us know what David Leahy is going to say.

THE COURT: Mr. Witness, do you know what Mr. Leahy's system was?

THE WITNESS: As I said, based on my observation as to what was going on.

THE COURT: You may inquire.

BY MR. KITCHEN:

Q Can you, Mr. Lampkin, identify or define for me what an undervote is in that office that they're talking about, what they

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used to define it?

A As I observed it through the course of the day, they were identifying undervotes where there was no clear vote. Again, that -- I believe is Mr. Leahy's term in the presidential ballot area.

That's how they were defining it to be an undervote.

MR. KITCHEN: Just a moment, please, Judge. Thank you, Mr. Lampkin.

MR. KRAFTCHICK: Can I ask this witness a couple question?

THE COURT: You may.

CROSS EXAMINATION

BY MR. KRAFTCHICK:

Q Mr. Lampkin, you understand where the number of undervotes comes from in the first place?

A It all depends what number. There are only so many numbers.

Q Let me see if I can explain it to you, you start with the precinct?

MR. TERRELL: Excuse me, I object to counsel testifying, he can ask questions.

Q We'll do it through questions, all right, sir?

THE COURT: All right.

Q Let me start with the precinct, we start with the precinct and we come up with a number of ballots for the precinct,

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right, can you do that?

A Are these incremental questions.

MR. KLOK: Your Honor, can I object, please, it seems the problem we have is there's a discrepancy between two documents, and now apparently counsel is going to take this guy and try to explain the discrepancy for Mr. Leahy's office. If they want to explain how it happened, they should not put us through this.

MR. KRAFTCHICK: We're going to make sure his observations are consistent.

THE COURT: Let's don't testify.

BY MR. KRAFTCHICK:

Q You start with a precinct and you find out how many ballots there are, that's something you can count?

A I'm not understanding where you're going.

Q If you know, when you have a set of ballots, you have a number that reflects the number of presidential votes?

A I believe that to be true, but it's unclear.

Q There's also some overvotes, correct?

A Again, I believe that to be true, but I'm not sure.

Q If you add together the presidential votes, and the overvotes, and then subtract them from the number of ballots from the precinct, that ends up as your undervote, do you understand that?

A I don't know.

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Q Let me ask you this, sir: When you were observing, was it your observation that what Mr. Leahy was trying to do was to make sure that the undervote that he originally had from the precinct fully matched up to the number of ballots pulled out by the machine?

A Frankly, I'm not sure what he was trying to do, because, as I recall, and I think -- actually, these documents don't reflect if there are precincts where, in finality, and I'll put that with quotes around it, the number of hand tabulated undervotes exceeds the number that was ascertained on November 8th. So under that premise, and during the course of the day, that's why I objected to what was going on.

Q So what Mr. Leahy was trying to do was to reconcile --

THE COURT: Sustain the objection. I think the witness started off by saying he thought what they were trying to ascertain, so that's all the witness can testify to. Now, if there's some other witness that is going to come in and explain that, that the contradict it or explain it.

Q One last question, anything about your observations that's inconsistent with the process of trying to match up the undervote with the number of cards?

A Yes.

Q What was inconsistent about it?

A I thought running the ballots through the machine, what appears to be a fourth time, was actually, you could cause the

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ballots -- you could cause there to be a net increase in the total number of undervote which would undercut that very point.

Q But that was, in fact, the very thing that the Court had ordered us to do, or allowed us to do in previous cases where we're supposed to run it through the machine to pull out from the undervote, did you know that?

MR. TERRELL: Excuse me, he's testifying, Your Honor.

THE COURT: Sustain the objection.

BY MR. KRAFTCHICK:

Q Sir, do you know any way to pull out the undervote other than to put it through the machine or to hand count it to find out which one is the undervote?

A I don't know if there's any other way.

Q And you would leave that to Mr. Leahy to dig that out, right?

A I thought we were operating under Judge Sauls' order that day, not the discretion of the supervisor.

Q The supervisor does have discretion to handle the ballots?

MR. TERRELL: I object, Your Honor.

THE COURT: I sustain.

MR. TERRELL: No further.

THE COURT: May this witness stand down and be excused? Without objection, call the next witness.

MR. BARTLIT: Governor George W. Bush and

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